

HOUSE BILL 625

By Hardaway

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 40 and Title 52, relative to mental health
evaluations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 33-6-401, is amended by
redesignating the section as subsection (a) and adding the following:

(b)

(1) There is a rebuttable presumption that a person meets the standard in subsection (a) for emergency detention and examination if the person was charged with an offense described in subdivision (b)(3) and ordered by the criminal, circuit, or general sessions court to undergo an evaluation under § 33-7-301 to determine whether the person is incompetent to stand trial or the person's mental capacity at the time of the commission of the crime.

(2) The presumption established by subdivision (b)(1) may be rebutted only by clear and convincing evidence that the person does not pose an imminent substantial likelihood of serious harm.

(3) This subsection (b) applies to any offense for which the defendant, if convicted, would be required to serve at least eighty-five percent (85%) of the sentence imposed before becoming eligible for release from incarceration, pursuant to § 40-35-501.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.